DARYL ERIC RAINE
versus
SEAN CHRISTOPHER WALLER
and
COLLEEN FAY WALLER
and
DANIEL JAMES WALLER
and
NATHAN ROBERT WALLER
and
NICOLE RUTH WALLER
and
JAMES COURTLAND WALLER
and
CLIVE WILLIAM BISHOP
and
GEORGE MCGHIE
and
AUTOWORLD HARARE PVT LTD
and
DEALMATE INVESTMENTS PVT LTD
and
ALISON DE KLERK
and
ISUZU MOTORS SOUTH AFRICA PTY LTD
and
PAUL CHENJERAYI
and
PAZA BUSTER COMMODITY BROKERS PVT LTD
and
MAXWELL TAWUYA
and
DONALD MAZWI SIBIDI
and
AUTOWORLD BULAWAYO PVT LTD

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 11 March 2026

Opposed Court Application

L. Uriri, for the applicant
D. Ochieng, for the 1st & 4th respondent
A. Masango, for the 12th respondent
T. Mpofu, for the 11th, 13th & 14th respondents

No appearance for the 2nd-3rd, 5th-10th, 15th-17th respondents

CHITAPI J: This is an application for a declaratory order. The applicant seeks relief as set out in the draft order which is couched as follows:

"IT IS ORDERED THAT:

1. The application for a declaratory order be and is hereby granted.
2. It is declared that Sean Christopher Waller, Collen Fay Walter. Daniel James Waller, Nathan Robert Waller, Nicole Ruth Waller, and James Courtland Waller are not beneficiaries of The Delta Trust [2003]. Delta Trust [2008] and Roseton Trust which hold 49% shareholding in Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo (Pvt) Ltd and Dealmate Investments (Pvt) Ltd.
3. It is declared that Clive William Bishop, George McGhie are not the trustees of The Delta Trust [2003], Delta Trust [2008] and Roseton Trust which hold 49% shareholding in Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo [Pvt] Ltd and Dealmate Investments (Pvt) Ltd.
4. It is declared that Maxwell Tauya and Donald Mazwi Sibindi are the current trustees of The Delta Trust [2003], Delta Trust [2008] and Roseton Trust which hold 49% shareholding in Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo [Pvt] Ltd and Dealmate Investments (Pvt) Ltd.
5. It is ordered that not being a member of Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo [Pvt] Ltd and Dealmate Investments (Pvt) Ltd, the 1st Respondent, Sean Christopher Waller does not have and cannot exercise rights in respect of any shareholding in Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo [Pvt] Ltd and Dealmate Investments (Pvt) Ltd.
6. It is declared that DARYL ERIC RAINE [APPLICANT], COLLEEN RONNEL RAINE, JORDAN DARYL RAINE and JASMIN OLIVIA RAINE are the only beneficiaries of The Delta Trust [2003], Delta Trust [2008] and Roseton Trust which hold 49% shareholding in Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo [Pvt] Ltd and Dealmate Investments (Pvt) Ltd.
7. That the 1st to 6th Respondents be and are hereby ordered to cease representing themselves as beneficiaries of The Delta Trust [2003], Delta Trust [2008] and Roseton Trust and/or as shareholders of Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo [Pvt] Ltd and Dealmate Investments (Pvt) Ltd.
8. The 1st to 17th Respondents be and are hereby ordered to pay the Applicant's legal costs of suit on a higher scale of legal practitioner and client's scale, jointly and severally, one paying the other to be absolved."

The parties are as cited in the heading to the application. The applicant is Daryl Eric Raine. The first respondent is Sean Christopher Waller. The second respondent is Colleen Fay Waller, the third respondent is Daniel James Waller, the fourth respondent is Nathan Robert Waller, the fifth respondent is Nicole Ruth Waller, the sixth respondent is James Courtland Waller, the seventh respondent is Clive William Bishop, the eighth respondent is George Mcghie, the nineth respondent is Autoworld Harare (Pvt) Ltd, the tenth respondent is Dealmate Investments (Pvt) Ltd, the eleventh respondent is Alison De Klerk, the twelfth respondent is Isuzu Motors South Africa (Pty) Ltd, the thirteenth respondent is Paul Chenjerayi, the fourteenth respondent is Paza Buster Commodity Brokers (Private) Limited,

the fifteenth respondent is Maxwell Tawuya, the sixteenth respondent is Donald Mazwi Sibindi and the seventeenth respondent is Autoworld Bulawayo (Pvt) Ltd. The first to the eighth respondents, the eleventh, the thirteenth, the fifteenth and sixteenth respondents are adult persons. The nineth, tenth, fourteenth and seventeenth respondents are duly registered companies according to the laws of Zimbabwe whilst the twelfth respondent is registered in South Africa.

The background facts to the dispute can be summarized as follows. There are three trusts involved in the dispute namely Delta Trust (2003), Delta Trust (2008) and Roseton Trust. The applicant alleges that in 2003, he established Deltaland Motors Pvt Ltd which concluded a delta motors franchise dealership. This led to the establishment of the nineth and seventeenth respondents. He claimed that he established the companies with the assistance of the first respondent who was his friend until their recent fall out. He claimed to have funded all the incorporation costs as well as meeting the expenses for the companies' operations which included the identification and purchases of business premises and workshops bought from profits made by the business. He claimed to have then leased the premises and workshops to the nineth and seventeenth respondents and to have sold the properties to third parties on expiry of the leases.

In relation to the shareholding in the nineth respondent, the applicant claimed that although the transcribers who promoted the company namely the first respondent and the late Jong Chingarire held respectively 40% and 60% shareholding. The applicant claims that he fronted them but they were not beneficial shareholders in the company. They held the shares on the applicant's behalf. In that regard the applicant produced correspondence between him and the first respondent in the form of letters dated 24 July 2003 addressed to the secretaries of Deltaland Motors Pvt Ltd in which the two nonbeneficial shareholders wrote a similar letter as follows in substance. "Deltaland Motors Private Limited this letter serves to confirm that I am holding the ordinary shares in Deltaland Motors Private Limited as a nonbeneficial owner on behalf of Mr. Daryl Eric Raine". In an email sent on 5 April 2017 by first respondent to the applicant "…I know we have had numerous discussions on my involvement in Autoworld and how I benefit and which we have never really come to any firm conclusions on and it is in this area I am seeking clarity from you. I do not have any ownership in Autoworld and don't expect to have any as I have never invested in the business. One thing I know in my heart is that I take the responsibility of running Autoworld up here on your behalf very seriously and I treat the business as if it is mine. I very much eat,

drink and sleep Autoworld. I give it all I have and do my utmost to treat it like my very own property and I do know and sense that you appreciate that. As much as I take the attitude and mindset to run it and treat is as my own, it is not possible to assume the same level of feelings you have because I do not own it…" The first respondent in the same email then dealt with a lot of other things concerning the running of the business and his entitlements which however did not involve a claim to ownership. He also related to his wish for a compensation package and that he was now turning to cattle ranching and starting a butchery business amongst other things. The applicant therefore averred that he is the 100% beneficial shareholder in the three companies being the nineth, tenth and seventeenth respondents.

As far as the three trusts referred to above are concerned, the applicant alleged that as regards the Delta Trust, it was established by the first respondent as the settler for the benefit of the applicant and his family members. The trust was described as a discretionary trust. He attached a copy of the Trust Deed which was executed on 1 February 2003 being the date of its signature by the first respondent and the three trustees therein namely Clive William Bishop, Georgie Mcghie and Karl Delano Schoeman. The beneficiaries under that trust deed were listed as follows Colleen Fay Waller described as wife of Sean Christopher Waller and their children, the third respondent, fourth respondent, fifth respondent, applicant, Colleen Ronnel Raine and children, Jordan Darly Raine and Jasmin Olivia Raine. Also to benefit were spouses, widows, children, grandchildren direct descendants or other dependents of the listed beneficiaries as the trustees would recognize as beneficiaries and also any persons which the trustees would add as beneficiaries in the exercise of the trustees' powers under the Deed of Trust and any trust in which any of the listed beneficiaries would be beneficiaries.

Another trust called the Delta trust was again established by the first respondent as the settler on 8 July 2008. The purpose of the trust was to provide for the Raine and Waller families. The trustees were the same as per the Trust Deed of 2003. The beneficiaries were as follows Daryl Eric Raine, Colleen Ronnel Raine, Jordan Darly Raine, Jasmin Olivia Raine, Sean Christopher Waller, Colleen Fay Waller, Daniel James Waller, Nathan Robert Waller, Nicole Ruth Waller and James Courtland Waller. The beneficiaries were to include any other persons appointed by the trustees as beneficiaries in the exercise of powers granted in section 9 of the trust deed and were further to include any charity or charitable body.

A further trust called the Roseton Trust was established by the first respondent on 8 February 2008 as the settler. The trustees were listed as Michael Edward Bltch, Raymond Paul Louw and Karl Delanon Schoeman. The purpose of the trust was to provide for the

welfare and maintenance of the Raine and Waller families as provided for in the trust deed. The beneficiaries were the same as in the preceding trust deed as detailed.

In relation to control of the trust, the applicant averred that the first respondent in recognition of the fact that the trusts were for the benefit of the applicant's family wrote and signed letters of wishes in which he stated that the trustees of the trust were to take instruction solely from the applicant and that the trust fund (as created in those trust) was to benefit the applicant's family only. The trustees confirmed that they accepted that they would run the trust in accordance with the applicants wishes. The applicant claimed that the Delta Trust formed in 2003 owns forty-nine percent (49%) of the shareholding in business of Autoworld after offloading fifty-one percent (51%) thereof to the thirteenth respondent by agreement dated 29 March 2011 who used a company, the fourteenth respondent to consummate the transaction. By letter dated 21 June 2011, the Ministry of Youth Development Indigenization and Empowerment in accordance with section 4(1)(b) of the Indigenization and Economic Empowerment Act [*Chapter 14:33*] approved the acquisition of the fifty-one (51%) percent shareholding in the nineth and seventeenth respondents by the twelfth respondent. The dispute in the matter concerns the forty-nine (49%) shareholding which remained.

The applicant averred that the first respondent tendered written resignations from the directorships of the nineth, tenth and seventeenth respondents. The resignations are dated 26 July 2019. Further the applicant attached of the same date letters of resignations of the common trustees of the three trusts and their unanimous appointment of the new trustees being the fifteenth and sixteenth respondents.

The applicant also attached minutes of a meeting held in South Africa attended by the applicant, first and thirteenth respondents and senior management of the twelfth respondent on 19 March 2019. The purpose of the meeting was stated as "Resolve shareholding impasse, discuss by out of Daryl Eric Raine(both parties agreed before meeting that rehashing old issues is not helpful for (sic)". The meeting noted that there was a breakdown in trust relationship between the applicant and the first respondent. It noted that the applicant needed to have unfiltered access to his 49% shareholding and to that end, a change in the trustees was necessary since existing trustees were related to the first respondent. The meeting decided that there was a need to have audited accounts of the companies after which there would be further engagement. The applicant averred that his ownership of forty-nine (49%) of the business was acknowledged by the meeting and therefore by the first respondent. The

applicant therefore prayed for the orders he seeks arguing that he solely owned the forty-nine(49%) remaining shareholding in the businesses after disposal of the fifty-one(51%) to thirteenth respondent through fourteenth respondent.

The first and fourth respondents filed opposition to the application. The first respondent in his affidavit raised a point in limine that there were material disputes of facts not capable of resolution on the papers. He averred that there was a dispute concerning whether or not the seventh and eighth respondents resigned as trustees of the Delta Trust 2003 and Roseton Trusts which owns forty-nine percent of the shareholding in the nineth, seventeenth and tenth respondents and whether or not the fifteenth and sixteenth respondents were appointed as the new trustees. He averred that under Case Number HC 6268/20, the court had ruled that the fifteenth and sixteenth respondents were not trustees of the Delta Trust. The case result does not show this because the matter was marked "removed from the roll".

On the merits, the first respondent averred that the applicant failed to establish or prove that he is entitled to any of the declaratory orders sought. The first respondent averred that after the applicant was offered the franchise in issue herein, the first respondent established Deltaland (Pvt) Ltd Motors with John Chingarire in 2003 in collaboration with the applicant. He averred that the applicant was appointed dealer principal, the equivalent of a Managing Director and that the applicant held this position between 2003 and 2012. The first respondent averred that he was and still remains a director. He averred that the fact of his being a director was admitted by the applicant in Case Number HC 6286/20.

The first respondent then gave details of a parallel but related business called Anchor Management Services, an offshore company. He went on to wash dirty linen in public and averred that the applicant brought money into Zimbabwe using unofficial channels traded in cars and proceeds were externalized. He attached accounts of Anchor Management Services to show the moneys which he alleged was tainted with illegality. He averred that there was a verbal agreement that he would receive profits generated by the illegal business. Quite clearly the court would not recognize such claim or enforce it due to admitted illegality of the money transactions by the first respondent. This is however not a matter before the court save that it raised the court's eyebrows that the first respondent admitted involvement in the alleged illegality yet seeks to say he has a legal claim to profits realized thereby. I leave the issue as an aside comment as there was no counter-claim for such profits.

The first respondent admitted that him and Chingarire hold the shares in the tenth respondent on the applicant's behalf. He admitted the letters which him and Chingarire wrote to say that they did not own the shareholding was transferred to the trusts. The first respondent admitted that he managed the franchise business in 2006 on terms not clear.

With regard to letters which he wrote confirming he had no claim to ownership of the business in issue and the companies, the first respondent averred that although they are not marked without prejudice, they were in fact without prejudice communications intended to reach agreement as to "a share of profits of the whole business." He averred that his concessions were factually incorrect since the owner was not the applicant but the trust whose beneficiaries were still to be determined. Was not the beneficial owner in any of the respondent companies since the shareholding in Deltaland (Pvt) Ltd was transferred to Delta Trust in October 2004.

The first respondent averred that the applicant and his family were potential beneficiaries. He also stated that the applicant alleged in Case Number HC 6268/20 that the 2003 trust deed was a fraud and did not exist. The first respondent however agreed that the trusts were settled by him at the instance of the applicant and were not his initiative. He averred that the 2003 Trust Deed did not provide for its amendment. He did not appreciate the basis for the formation of the 2008 Trust Deed although he settled it. He averred that Roseton Trust was settled to operate the seventeenth respondent through the tenth respondent. He averred further that the 2008 trust did not replace or take over the shareholding in the seventeenth respondent. The first respondent pointedly averred that he was never a beneficiary of the capital assets of the business.

The first respondent admitted the letters of wishes but averred that they related to the 2008 trust which did not have any shareholding in the business. He admitted that he claims fifteen percent (15%) of the business in issue and that his claims in that regard remain unresolved. He averred that the 2003 Delta trust was not controlled by the applicant but by the trustees. He again related to the alleged dispute of fact concerning the resignation of the trustees and averred that the court in Case Number HC 6268/20 had ruled that the fourteenth and sixteenth respondent were not appointed trustees. He averred that the finding was *res judicata.* There is of course no judgment in that case to back the *res judicata* claim.

He admitted in paragraph 35 of the opposing affidavit that he is not a shareholder in the Autoworld business. He averred that he could only be removed from his position by trustees and not by the applicant. He denied the resignations from the directorship of the

company and averred that the resignations were doctored. In his case, he averred that he could not have signed them because on the dates on which they were signed being 16 and 29 July 2029 and 8 August 2019, he was not in Harare. He however did not state where he was. He averred that the witnesses to the resignations had left Autoworld business in 2014 and could not have witnessed the resignations in 2019 in Harare.

Again and pointedly, the first respondent averred that he did not hold any shares in either the nineth, tenth and seventeenth respondents. He alleged that he was only a director in the companies in issue. He averred that the applicant will have to pay him first what he believes is due to him before booting the first respondent out. The amount he claims is fifteen (15%) of the entire business.

The fourth respondent in his opposing affidavit averred that neither of the trusts herein has a provision for amendment and that the applicant is seeking that the court should do so. He averred that in both 2003 and 2008 trusts, trustees could resign by notice to other trustees. He averred that there was no allegation made by the applicant that there was any resignation of trustees in terms of the notice provision.

He averred that whilst the 2003 trust deed provided for the election of trustees in the event of a resignation, the 2008 trust deed provided that in the event of a resignation one Jane Bermister would take over the vacant position. He averred that the applicant did not allege the occurrence of the events which would result in the replacement of a trustee. He thus reasoned that the purported resignations of trustees produced by the applicant occurred before a vacancy had arisen by resignation or removal. New trustees could not be appointed because there was an amounted replacement, Jane Bermiester. He also averred that the seventh and eighth respondents claimed that they resigned. The seventh and eighth respondents did not contest this application however.

The twelfth respondent did not oppose this application except for costs order sought against him. It prayed that the applicant's prayer should be amended to exclude it from liability for costs. The applicant did not press for costs against the twelfth respondent.

The thirteenth and fourteenth respondents filed an opposing affidavit in which they indicated that they would abide by the decision of the court. They objected to the claim for costs. The applicant did not press the relief of costs against the thirteenth and fourteenth respondents. The thirteenth respondent in his opposing affidavit averred that the directors in the Autoworld business were the applicant, first respondent and him. He claimed that upon his appointment the two were already directors. He was appointed director after purchasing

the fifty-one (51%) shareholdings in Autoworld. He denied that the fifteen (15%) claim made by the first respondent is documented anywhere in the books of the companies in issue herein. He averred that the first respondent signed his directorship resignation in Harare and that first respondent as well as Claude Ausley similarly signed it.

The eleventh respondent filed an affidavit in which she indicated that she does not oppose the application and would abide by the decision of the court. She objected to a costs order being made against her. She worked in the accounts office of Autoworld from 2009 and was responsible for the Delta Trust/Directors loan accounts. She averred that she managed drawings made by the applicant and first respondent. She averred that the applicant would at times remit money from South Africa for use by the business. She was aware of a verbal communication to her by the first respondent that he was owed money by the applicant although no figure was mentioned nor did she see any documents to that effect. She attached copies of the load accounts for the years 2009-2014.

There is an affidavit signed by the fifteenth respondent and another by Karl Delano Schoeman who is not a party to the application. The first respondent objected to the affidavit arguing that the applicant did not timeously file them. Schoeman confirmed his resignation as trustee and confirmed that trustees of the three trusts resigned and they appointed the fifteenth and sixteenth respondents as new trustees on their vacated positions. The first respondent averred that the affidavits ought not to have been filed without the leave of the court. The first respondent then annexed an affidavit by Clive William Bishop, the seventeenth respondent who denied having been resigned as trustee of the three trusts.

In the answering affidavit, the applicant averred that the opposing affidavit of the eighth respondent was not in correct form as it should have been made in format provided for in rule 59(1). It was contended that only the first respondent's affidavit was properly before the court. It was contended that just like with the seventh respondent, the eighth respondent must be taken as not having opposed the application.

On the merits, the applicant averred that there are no material dispute of fact because the seventh and eight respondents and Karl Delano Shoeman resigned from the trusts and trustees and did not challenge their resignations or signatures. It is however noted at this juncture that even if it is accepted for arguments purpose that the seventh and eighth respondents are taken not to have opposed the application, Karl Delano Schoeman as a trustee of the three trusts was not cited albeit he purported to file an affidavit supporting the application. He ought to have been cited. The other trustee, the eighth respondent denied

signing the resignation attributed to him. The applicant averred that the eighth respondent in denying his signature suffered from selective amnesia. He averred that originals were available for inspection by the eighth respondent.

The applicant averred that Case Number HC 6268/20 did not have a bearing on the current proceedings. The matter was disposed of by striking it of the roll on the basis that the applicant did not establish their *locus standi* to represent themselves as trustees. The issue of who the correct trustees are was left unresolved as at 31 March 2022. The issue arises in the current application and there is no consensus on the resignation of the trustees in favour of the fifteenth and sixteenth respondents. This is a paper trail issue which can be established by documents and oral evidence because it is not possible where a signature is disputed for the court to say it is the signature of the person denying because the person suffered from selective amnesia. Credible evidence must be placed before the court to establish the authenticity of a disputed signature.

I seriously considered the objection that there are disputes of fact in this application which cannot be resolved on the papers even taking cognizance of the Plascon Evans rule or taking a robust approach. The incidence or paper trail concerning the control of the trusts in issue herein need to be established on a balance of probabilities. The first respondents counsel moved for dismissal of the application on the basis that the dispute of trusteeship had been noted by CHINAMORA J in judgment HH226/22 which disposed of Case Number HC 6268/20. It has been noted that any indications made by the learned judge on the issue of disputes of fact was obiter because the application was not disposed of on that basis,

In making a finding that there are disputes of fact in the application which I cannot resolve on the papers, this does not apply to every relief sought. The relief sought in paragraph 5 of the draft is not incapable of resolution. The applicant wants the court to declare that the first respondent has no claim to the forty-nine (49%) shareholding in the respondent companies namely nineth, tenth and seventeenth respondents. The first respondent does not dispute this fact.

The court which finds the existence of a dispute(s) of fact incapable of resolution on the papers has a discretion on the future of the proceedings. The court can dismiss the application with costs or order parties to go to trial or order oral evidence in terms of any rules of court. To dismiss the application results in the matter remaining unsolved. The applicant and respondents' evidence in relation to the trusts and resignations of trustees is in conflict. A referral to trial will result in the dispute of the disenfranchising of beneficiaries

named in the trust deeds and trustees' resignations to be resolved to finality. Hopefully the pre-trial conference to be held will go a long way to resolving the dispute in whole or in part. There will however be need to have the applicant file a declaration.

The application partly succeeds in that the relief sought in paragraph 5 of the draft order will be granted. For the rest the matter will be referred to trial. The following order is issued.

IT IS ORDERED THAT

1. It be and is declared that the first respondent is not a member of Autoworld Harare (Pvt) Ltd, Autoworld Bulawayo (Pvt) Ltd and Dealmate (Pvt) Ltd and cannot exercise shareholder rights in the said companies.
2. In relation to the other claims made and relief sought, the matter is referred to trial with the following directive made to case manage the filing of pleadings
    a) The applicant's founding affidavit is to be treated as the summons.
    b) The applicant shall file his declaration within 10 days of the date of this order.
    c) The rest of the process to follow shall be in terms of the rules of this court.
3. The costs of this application shall be in the cause.

CHITAPI J:.....

Mloshwa Solicitors – applicant's legal practitioners
Wintertons – 1st and 4th respondents' legal practitioners
Rubaya and Chatambudza – 11th, 13th and 14th respondents' legal practitioners
Malinga and Masango- 12th respondent's legal practitioners